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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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OSCAR OCASIO and JULIO SUAREZ,

Plaintiffs,

-against-

**STIPULATION AND
ORDER OF DISMISSAL**

13 Cv. 3942 (KPF)

THE CITY OF NEW YORK; NEW YORK POLICE
OFFICER JOSE CINTRON, shield number 17999, in his
individual and official capacity; NEW YORK POLICE
OFFICER ELLINES JIMENEZ shield number 005259, in her
individual and official capacity; NEW YORK POLICE
OFFICER GABRIEL BAAITH, shield number 25605, in his
individual and official capacity; "JOHN and/or JANE DOES"
Nos. 1, 2, 3, etc. (whose identities are unknown but who are
known to be personnel of the New York City Police
Department), all of whom are sued individually and in their
official capacities,

Defendants.
----- X

WHEREAS, the parties have reached a settlement agreement and now desire to
resolve the remaining issues raised in this litigation, without further proceedings and without
admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by
and between the undersigned, that

1. The above-referenced action is hereby dismissed with prejudice; and

2. Notwithstanding the dismissal of this action in accordance with this agreement, the District Court shall continue to maintain jurisdiction over this action for the purpose of enforcing the terms of the settlement agreement reached between the parties and set forth in the Stipulation of Settlement executed by the parties in this matter.

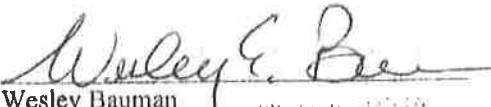
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By:


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By:


Wesley Bauman
Assistant Corporation Counsel

SO ORDERED:



HON. KATHERINE P. FAILLA
UNITED STATES DISTRICT JUDGE

Dated: New York, New York
May 8, 2014